

12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Petition for Final Distribution is noticed for a different date, the Court will vacate the December 8, 2025, date. **No appearance is necessary on today's calendar.**

ESTATE OF BRENT ERVIN

Case Number: 24PB-0032561

This matter is on calendar for hearing on the Petition for Final Distribution and Report of Administrator on Waiver of Accounting. The matter has been properly noticed, with proof of service on file. No objections have been raised. The calculation for statutory compensation is incorrect. Statutory compensation payable to counsel is \$11,185.24, not \$11,188.24 (\$209,261.81 x 2% = \$4,185.24; \$4000 + \$3000 + \$4,185.24 = \$11,185.24). The Petition for Final Distribution is **GRANTED**. A proposed order has been submitted and will be executed by the Court, with the modification to the statutory compensation. The matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF RAYMOND FANN

Case Number: 24PB-0032299

Judge Tamara L. Wood discloses that her spouse is a part-time employee of County of Shasta, Department of the Sheriff as an Investigative Analyst who performs background investigations relative to prospective new employees of the Department of the Sheriff. Further, Judge Wood's step-daughter is employed by the County of Shasta-Health and Human Services Agency as the Branch Director of Administrative Services. The Court does not believe Judge Wood's spouse or step-daughter had any involvement in the investigation, management, prosecution or defense of this case but does disclose the employment relationship between named party County of Shasta and the Court's first degree relative as required by California Code of Judicial Ethics, Canon 3E(2).

This matter is on calendar for hearing on an Amended First and Final Account and Report and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception of the proposed distribution. The Petition indicates the decedent had a predeceased child (Raymond Fann II) and a post-deceased child (Larae Williamson). Under the laws of intestacy, the decedent's estate passes in equal shares to Raymond Fann II's heir (Timothy Fann) and the estate of Larae Williamson. The Court notes nothing has been submitted addressing any potential estate proceedings related to Larae Williamson. The matter is continued to **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Petition. An Amended Petition is required to correct the proposed distribution. Petitioner is **ORDERED** to file and timely serve a Notice of Hearing, along with a copy of the Petition, on all parties entitled to notice for the continued date. The Court notes, if Laura Yazzie-Fanning and LaNel Yazzie are the sole heirs of the estate of Larae Williamson, they can submit an affidavit for small estate to allow them to collect the distribution to the estate. **No appearance is necessary on today's calendar.**

ESTATE OF KAREN HARVILLE

Case Number: 24PB-0032365

This matter is on calendar for hearing on an Amended First and Final Report on Waiver of Account and Petition for Final Distribution. The matter has been properly noticed, with proof of service on file. No objections have been raised.

As to the issue of statutory compensation, under the relief requested the Petition specifically states in direct reference to Probate Code § 10005: “If Petitioner is responsible for the loss on the reappraisal of the property...” The Court clarifies that Probate Code § 10005 specifically refers to the responsibilities and liabilities of the personal representative in the administration of the estate. The statute is a limitation on the representative's personal liability when estate property is sold, in accordance with the law, below its appraisal value. This has no effect on the calculation of statutory compensation. The Court is not making a finding as to the personal representative's personal liability to the estate for the loss on sales. Additionally, whether or not the Court takes into consideration the Reappraisal for Sale, the statutory compensation remains the same. The calculation for statutory compensation is clearly outlined in CRC 7.705 (Inventory and Appraisal + Receipts + Gains on Sale – Losses on Sale = Fee Basis). The Court notes the Petition incorrectly states the fee basis includes the subtraction of gains on sale. Using the original Inventory and Appraisal values, statutory compensation is still \$12,806.41.

The Petition is **GRANTED**, with statutory compensation awarded to the Personal Representative and Counsel in the sum of \$12,806.41. A proposed order has been lodged and will be executed by the Court. The order shall be modified, removing any statements regarding the Personal Representative's personal liability for the loss on sales. The previously set hearing of **Monday, August 18, 2025 at 2:30 p.m.** is VACATED. This matter is set for **Monday, September 22, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of Receipts and a Petition for Final Discharge. **No appearance is necessary on today's calendar.**

ESTATE OF CAROLINE HYATT

Case Number: 24PB-0032304

This matter is on calendar for Status of Administration. No Petition for Final Distribution has been filed. No Status Report has been filed. The matter is continued to **Monday, September 29, 2025, at 2:30 p.m. in Department 44** for Status of Administration. If a Petition for Final Distribution cannot be filed prior to the next hearing date, the Court **ORDERS** the Personal Representative to timely file and serve a Status Report with proper Notice of Hearing in compliance with Probate Code Sections 12200 et seq. Failure to do so may result in the issuance of an Order to Show Cause Re Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court Order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the September 29, 2025, date. **No appearance is necessary on today's calendar.**